

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



August 19, 2020

The Honorable Thomas N. Douglass
Judge of the Superior Court
County of Riverside
4050 Main Street
Riverside, CA 92501

Re: Tracey Murriele Warden aka Tracey Merle Waldron
CDCR No: K29646
Case No: ICR23255
Date of Sentence: October 30, 1996

Dear Honorable Thomas N. Douglass:

The purpose of this letter is to provide the court with the authority to resentence inmate Tracey M. Waldron, K29646, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Waldron has received one Rules Violation Report since his date of incarceration, however, he has remained disciplinary free since February of 2001. Inmate Waldron is currently assigned as a Hobby Craft Clerk and is taking a College Correspondence Course. He previously held numerous clerk jobs, worked in the kitchen and the yard, was the vice-chairman on the Inmate Advisory Council and tutored inmates in the General Educational Development Program (GED). Inmate Waldron currently participates in Introduction to Conquering Substance Abuse and Criminal and Gangs Anonymous. He previously has participated in the Lifer Program, Toastmasters, Insight, Narcotics Anonymous, Living in Balance, Alternatives to Violence, La Mesa

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Redonda, Lighthouse, Celebrate Recovery, Anger Management, Victim Awareness Programs, and various faith-based Self-Help Programs. Waldron has received four letters of support and 16 Laudatory Chrono's from Correctional Staff. Waldron has received 92 Laudatory and General Chrono's from Self-Help Group Sponsors, acknowledging his commitment and dedication to his assigned Self-Awareness and Improvement Groups. Inmate Waldron met the standards of the GED and received his High School Equivalency Certificate at Ironwood State Prison. Waldron has earned an Associate of Science Degree affiliated through Palo Verde College and earned two Associate of Arts Degrees at Chuckawalla Valley State Prison. Staff have stated inmate Waldron has a great attitude, frequently helps out staff and inmates, is a great programmer, and has never been a disciplinary problem.

Having reviewed the enclosed documentation it appears that inmate Waldron's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

(for) 
RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable John W. Vineyard, Presiding Judge
Riverside County District Attorney's Office
Riverside County Public Defender's Office